# REMOVAL AND REINSTALLATION ADDENDUM

This Removal and Reinstallation Addendum (the "Addendum") is entered into by and between Freedom Forever New Mexico, LLC ("Freedom") and _____ ("Customer") as of _____ (the "Addendum Effective Date"). Freedom and Customer may be referred to as a "Party" or jointly as the "Parties."

## RECITALS

**WHEREAS,** Freedom and Customer entered into that certain NM Supply and Installation Agreement, dated _____ ("Supply Agreement"), wherein Freedom agreed to install a solar energy system ("System") on the Customer's property located at _____ ("Property").

**WHEREAS**, installation of the System was completed by Freedom on or around _____. Such installation was specifically designed in accordance with the original site plan ("Plan") and then approved for installation and interconnection to the applicable utility by the appropriate authority having jurisdiction ("AHJ").

**WHEREAS,** Customer has notified Freedom that they will be contracting with a third party to make certain improvements to the rooftop of the Property ("Customer Work").

**WHEREAS,** Customer requires the System to be temporarily removed from the Property in order to commence the Customer Work.

**WHEREAS,** following completion of the Customer Work, Customer is requesting that Freedom reinstall the System on the Property ("Reinstall").

**THEREFORE**, and in consideration of the foregoing recitals, the Parties agree to abide by the following Terms and Conditions:

## TERMS AND CONDITIONS

1. **REMOVAL AND STORAGE OF THE SYSTEM.**
   1.1 Timing: Freedom shall complete the removal of the System from the Property within sixty (60) days following the Addendum Effective Date.
   1.2 Storage: The Customer is solely responsible for the storage of the System during the time that Customer Work is performed and the System is uninstalled.

2. **NOTICE.** Customer shall provide Freedom with written notification once the Customer Work is completed on the Property ("Customer Notice").

3. **INSPECTION.** Upon Customer Notice and prior to Reinstall, Freedom shall conduct an assessment and inspection of the Property and the Customer Work performed ("Inspection").
   3.1 The Inspection will be in Freedom's sole and absolute discretion, and will evaluate the following:
      a. The roof and Customer Work performed are in a condition that is of sound quality consistent with industry standards, and safe for Freedom to Reinstall.
      b. Given the Customer Work performed, whether the System can be reinstalled in accordance with the Plan.

c. Any other circumstances that could delay, pause, or prohibit the Reinstall, including, without limitation, those that arose during the storage of the System and/or when the System was disconnected.

4. **REINSTALLATION OF THE SYSTEM.** Following Inspection, Freedom will make a determination, in its sole and absolute discretion, of whether the System can be reinstalled in accordance with the Plan.
   4.1 Reinstall in accordance with the Plan: If the Inspection reveals that reinstallation of the System can happen in accordance with the Plan, then Freedom shall complete Reinstall within sixty (60) days following such Inspection.
   4.2 Reinstall *not* in accordance with the Plan: If the Inspection reveals that the System can no longer be reinstalled in accordance with the Plan, then Freedom shall have the right to delay, reject, pause, or refuse Reinstall until any and all non-compliance is remediated by Customer ("Remediation").
      a. Remediation includes, without limitation, the following:
         i. Treating the reinstallation as a new installation, which may require the execution of a new Supply Agreement by the Parties.
         ii. Re-designing the Plan or submitting a new plan to accommodate the roof changes from the Customer Work.
         iii. Any other necessary means to correct non-compliance of the Plan or feasibility of Reinstall.

5. **CUSTOMER WARRANTY AND REPRESENTATION.** Customer hereby warrants and represents the following:
   5.1 All Customer Work performed will be completed by a licensed contractor.
   5.2 Following completion of the Customer Work, any part of the Property in which Customer Work was performed (including the roof) will be in sound condition, consistent with industry standards.

6. **FREEDOM WARRANTY AND REPRESENTATION.** Following commencement of the System removal by Freedom, Customer's (i) Limited Warranty and (ii) roof penetration warranty for the Covered Roof Area as set forth in the Supply Agreement shall be void. Freedom hereby warrants and represents the following:
   6.1 Reinstall Limited Warranty: Upon completed Reinstall, Freedom warrants that the Reinstall will be free from defects in construction and workmanship ("Reinstall Limited Warranty").
      a. The Reinstall Limited Warranty shall have a warranty period as follows, whichever is greatest:
         i. The warranty period will continue under the terms and conditions of the Limited Warranty as set forth under the Supply Agreement. By way of illustration only, if the Customer's Limited Warranty under the Supply Agreement is for ten years, and the Customer Work is being performed in year four of the Limited Warranty, then upon Reinstall and satisfaction of all other terms and conditions of this Addendum, the Limited Warranty will be voided and replaced by the new Reinstall Limited Warranty, which will be six years.
         ii. One (1) year following Reinstall.
         iii. The minimum warranty period as required by applicable law.
      b. Notwithstanding anything in the Supply Agreement to the contrary, the Reinstall Limited Warranty excludes products that are (i) not Freedom branded and (ii) not manufactured by, or on behalf of, Freedom. The Customer shall be entitled to all warranties (if any and where applicable) provided by the manufacturer(s) of the components, accessories and equipment that are not manufactured by Freedom, but which Freedom installs (hereinafter, the "Manufacturer's Warranty").
      c. All terms and conditions in the Supply Agreement that are applicable to the Limited Warranty shall also apply to the Reinstall Limited Warranty, except where superseded by this Addendum.

References to "Limited Warranty" under the Supply Agreement shall be replaced by the Reinstall Limited Warranty hereunder.

6.2 Warranty for Reinstall Covered Roof Area: Upon completed Reinstall, Freedom warrants that for each roof penetration made by Freedom in connection with the Reinstall (the "Reinstall Covered Roof Area), will be warranted against damage and water infiltration for a period of five (5) years. This is not a warranty of the entire roof. The warranty for the Reinstall Covered Roof Area shall be void and voidable if work is performed by Customer or Customer's contractors on the roof at any time following Reinstall.

6.3 Following the expiration of the Reinstall Limited Warranty and Manufacturer's Warranty (if any), Customer shall be solely responsible for the maintenance, repair, and/or replacement of the System, including, without limitation, all solar equipment related thereto. Customer's failure to strictly adhere to Section 6.3 herein shall constitute Exclusion Events under Exhibit A of the Supply Agreement.

7. **AGREEMENT AND ACKNOWLEDGEMENT.**

7.1 Customer hereby understands and acknowledges the following:

a. Freedom does not have any connection with or control over the Customer Work to be performed on the Property while the System is disconnected and removed.

b. To the extent the Customer Work is covered under any third-party warranty, Customer is wholly responsible for such warranty and will hold Freedom harmless in the event such warranty is voided by Reinstall.

c. Freedom is not responsible for (i) the storage of the System following its removal and (ii) any damage to the System during the period of removal and storage, unless the Parties agree otherwise.

d. Should the Parties agree that Freedom shall store the System, Customer will be invoiced for such additional costs. Barring gross negligence or willful misconduct, Freedom is not responsible for any damage to the System during the transportation or storage of the System.

e. Reinstall may result in circumstances that lead to less energy production, such as:

i. Different positioning of the panels post Reinstall may cause the System to receive less sunlight than in their current position;

ii. Malfunctions of the System; and

iii. Any other circumstances that may or may not be known as of the Addendum Effective Date.

f. Following the Customer Work and Inspection and to the extent any deficiency in the Property (including roof) exists and/or such conditions have changed as to affect (i) Freedom's ability to Reinstall, including, without limitation, reinstallation of the System in accordance with the Plan, and/or (ii) the safety of its personnel, then Freedom shall reserve the right to not Reinstall or delay the same until such deficiencies or circumstances are cured.

8. **ASSUMPTION OF RISK.** Customer hereby understands and acknowledges that the decision to remove, store, and reinstall the panels was made in the Customer's sole discretion, and therefore the Customer expressly assumes any and all related risks that may arise in connection thereto, whether those risks are known or unknown.

9. **INDEMNIFICATION.** Customer agrees to indemnify, defend, and hold harmless Freedom from any and all demands, claims, costs, losses, damages, recoveries, settlements, and any other expenses of any nature or kind brought or incurred (collectively, "Losses") as a result of the disconnection, removal,

storage, and reinstallation of the System and any part thereof, and agree to reimburse Freedom for any Losses incurred. Freedom's warranty obligations under Section 6 shall be excluded from this Section.

10. **INVOICE FOR COSTS, FEES, AND PAYMENT.** Freedom shall provide the Customer one invoice for the removal and reinstallation of the System, inclusive of any additional costs that may be assessed (hereinafter, the "Invoice"). The Invoice is attached as Exhibit A and valid for thirty (30) days from the date the System is removed. To the extent that Freedom does not proceed with the System removal and/or the Customer does not pay the Invoice pursuant to the terms and conditions as set forth therein, such invoice shall be void and Freedom will be excused from all performance under this Addendum until either (i) Freedom, at its sole discretion, decides to proceed with the lapsed invoice, or (ii) a new invoice is issued by Freedom. Notwithstanding the foregoing, Freedom reserves the right to modify or cancel any Invoice prior to the Customer paying any portion of the Invoice with notice to Customer. In no event shall Freedom have an obligation to commence Reinstall until (a) completion of the Customer Work, (b) completion of the Inspection of the Property, and (c) the Customer has paid the System removal cost and any other applicable costs as set forth under the Invoice. Customer hereby acknowledges and understands that the Invoice attached in Exhibit A is prepared prior to Customer Work being completed, and as such the costs of Reinstall are an approximation only, assessed as of the Addendum Effective Date, and may be subject to change. Following Inspection, Freedom reserves the right to modify the Invoice for the costs of Reinstall and assess additional costs. Any modification of the Invoice will come in the form of a Change Order to be provided by Freedom and executed by the Parties.

11. **RELEASE.** Customer hereby releases and forever discharges Freedom, and its parent entity and subsidiaries including, without limitation, Freedom Forever LLC, and its respective directors, officers, shareholder, agents, employees, representatives, attorneys, successors and assigns of and from any and all claims, demands, damages, costs, fees, expenses, actions, causes of action, suits, losses, liabilities, rights, debts, dues, sums of money, accounts, reckonings, obligations, costs, expenses, liens, bonds, bills, specialties, covenants, contracts, controversies, agreements, promises, variances, trespasses, damages, judgments, extents, and executions of every kind and nature whatsoever whether now known or unknown, foreseen or unforeseen, matured or unmatured, suspected or unsuspected, or hereafter may arise in law or equity (collectively, "Claims") against Freedom as it relates to the removal, storage, and reinstallation of the System, unless caused by Freedom's gross negligence or willful misconduct. Freedom's warranty obligations under Section 6 shall be excluded from this Section.
    11.1 Such Claims include, but are not limited to:
    a. Damage to any component of the System during removal and/or Reinstall.
    b. Damage to any component of the System during storage of the System while Customer Work is performed.
    c. Delays in Reinstall, whether caused by Freedom or otherwise.
    d. Any inability to Reinstall after Customer Work is performed.
    e. Damage to the Property during removal and/or Reinstall.
    f. Damage to the roof caused by a leak prior to Reinstall.

12. **DISCONNECTION PERIOD.** The Supply Agreement includes a Production Guarantee that guarantees a certain amount of production for each Production Year (see Exhibit A of the Supply Agreement). Removal of the System for an extended period of time may result in a decrease of production. During the period starting from the date of removal to the date of completed Reinstall ("Disconnection Period"), Customer hereby understands and acknowledges that Freedom is released from its warranties and/or obligations as set forth in the Production Guarantee of the Supply Agreement. The Production Guarantee shall be reinstated if/when the System is reinstalled, subject to modification

based on Freedom's testing and recalculation of the System, at Freedom's sole discretion. To the extent that the Production Guarantee is modified, the new annual System production shall be incorporated into the Supply Agreement by Change Order and Customer hereby agrees to promptly execute the same.

13. **GENERAL.**

13.1 Binding Authority. Customer agrees that this waiver shall be binding upon the Customer's heirs, next of kin, executors, administrators, and assigns.

13.2 Enforceability. Customer agrees that this waiver is intended to be as broad and inclusive as permitted by law in the State of New Mexico. If any portion is held invalid, the Customer agrees that the remaining provisions shall continue in full legal force and effect.

13.3 Subject Matter and Capitalized Terms. Upon execution, this Addendum shall be incorporated by reference into the Supply Agreement. This Addendum shall control solely for the subject matter, and all other provisions in the Supply Agreement shall continue to apply. In the event of a contradiction between the terms of this Addendum, the Invoice, and the Supply Agreement, the order of precedence shall be as follows: (1) this Addendum, (2) the Invoice then in effect, and (3) the Supply Agreement. Any capitalized terms in this Addendum that are undefined shall have the same meaning as defined in the Supply Agreement.

13.4 Governing Law and Dispute Resolution. The terms of the Supply Agreement as it relates to governing law and dispute resolution shall apply to this Addendum.

13.5 Limitation of Liability. The terms of the Supply Agreement as it relates to limitation of liability shall apply to this Addendum.

13.6 Execution. This Addendum may be executed in counterparts, each of which shall be deemed an original, but all of which together shall be deemed to be one and the same agreement. A signed copy of this Addendum delivered by facsimile, email or other means of electronic transmission shall be deemed to have the same legal effect as delivery of an original signed copy of this Addendum.

I HAVE READ THIS ADDENDUM AND FULLY UNDERSTAND ITS TERMS. I AM AWARE THAT THIS AGREEMENT INCLUDES A RELEASE/WAIVER OF LIABILITY, AND AN ASSUMPTION OF RISK. I UNDERSTAND THAT I AM GIVING UP SUBSTANTIAL RIGHTS, INCLUDING THE RIGHT TO SUE, AND VOLUNTARILY AND FREELY SIGN THIS ADDENDUM.

| 1. **CUSTOMER** | 2. **CUSTOMER #2** (if applicable) | **FREEDOM FOREVER NEW MEXICO, LLC** |
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| SIGNATURE: | SIGNATURE: | SIGNATURE: /s/ Greg Albright |
| NAME: | NAME: | TITLE: President<br>NAME: Greg Albright |
| DATE: | DATE: | DATE: |